

Writ challenging Supply Code vires dismissed as infructuous

High Court of Judicature at Allahabad · Division Bench · 19 July 2024 · 2024:AHC:115607-DB · Writ - C No. 67479 of 2011 ·
Writ dismissed as infructuous; interim order vacated

HEADNOTE

A 2011 writ challenging the vires of the U.P. Electricity Supply Code, 2005 was not thrown out at the threshold on alternative remedy; affidavits were called and all questions kept open. After long adjournments, a Division Bench in 2024 found none present for the petitioners, held the reliefs infructuous by efflux of time, dismissed the petition, and vacated any interim order. No clause of the Code was construed.

FACTUAL SUMMARY

M/s Shree Bihari Forgings Pvt. Ltd. and another filed a 2011 writ against Pashchimanchal Vidyut Vitran Nigam Ltd. challenging the vires of the U.P. Electricity Supply Code, 2005. A Division Bench on 24 November 2011 declined to dismiss the petition at the threshold on alternative remedy, directed exchange of affidavits, and kept all questions open. After a long series of adjournments, the petition was listed on 19 July 2024; counsel for the petitioners did not appear.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous writ

HOLDING

A writ left pending from 2011 is dismissed as infructuous by efflux of time where none appears for the petitioners; any interim order stands vacated. The Court did not construe the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Challenged in 2011; never decided on merits before dismissal as infructuous.

NOT DECIDED — AVAILABILITY OF ALTERNATIVE REMEDY

Kept open when affidavits were called in 2011; never ruled upon.